

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

RICARDO HEMENES,

Plaintiff designates Queens
County as the place of trial.

Plaintiff,

S U M M O N S

-against-

The basis of venue is
Place of Occurrence:
Intersection of 47th Street &
31st Avenue and 94th Street
and 23rd Avenue County of
Queens, State of New York

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, DOUGLAS ROSSI, P.O., and "JOHN DOES" 1-
5, fictitious names whose identities are not yet known and intended
to be the other currently unnamed police officers,

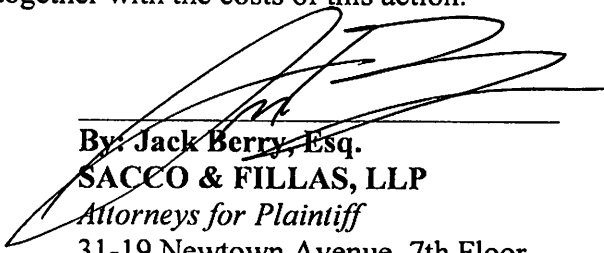
Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a
copy of your answer on the plaintiff's attorneys within 20 days after the service of this summons,
exclusive of the day of service of this summons, or within 30 days after service of this summons is
complete if this summons is not personally delivered to you within the State of New York.

In case of your failure to answer this summons, a judgment by default will be taken against
you for the relief demanded in the complaint, together with the costs of this action.

Dated: Astoria, New York
October 3, 2024


By: Jack Berry, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff

31-19 Newtown Avenue, 7th Floor
Astoria, New York 11102
(718) 746-3440
Our File No.: 31896-24

TO:
THE CITY OF NEW YORK
100 Church Street, 5th Floor
New York, New York 10007

DOUGLAS ROSSI, P.O.
34-16 Astoria Boulevard South
Astoria, New York 11103

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

RICARDO HEMENES,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, DOUGLAS ROSSI, P.O., and "JOHN DOES" 1-
5, fictitious names whose identities are not yet known and intended
to be the other currently unnamed police officers,

Defendants.

Plaintiff, by his attorneys, SACCO & FILLAS, LLP, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. Plaintiff, RICARDO HEMENES, at all times herein mentioned was and still is a resident of Monroe County, Pennsylvania.
2. That at all times herein mentioned, Defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.
3. That at all times herein mentioned, Defendant THE NEW YORK CITY POLICE DEPARTMENT, was and still is an agency under control of Defendant, THE CITY OF NEW YORK.
4. That at all times herein mentioned, DOUGLAS ROSSI, P.O., was and still is the agent, servant, and employee of Defendant, THE CITY OF NEW YORK.
5. That at all times herein mentioned, DOUGLAS ROSSI, P.O., was and still is the agent, servant, and employee of Defendant, THE NEW YORK CITY POLICE DEPARTMENT.
6. That at all times herein mentioned, "JOHN DOES" 1-5, fictitious names whose

identities are not yet known and intended to be the other currently unnamed police officers, (hereinafter "JOHN DOES"), were and still are agents, servants, and employees of Defendant, THE CITY OF NEW YORK

7. That at all times herein mentioned, "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the other currently unnamed police officers, (hereinafter "JOHN DOES"), were and still are agents, servants, and employees of Defendant, THE CITY OF NEW YORK.

8. That at all times mentioned herein, it was the duty of Defendant, THE CITY OF NEW YORK, to train and supervise its agent, servants, and employees, to perform their duties without the use of intimidation, coercion, verbal abuse any physical abuse.

6. That on or about October 13, 2022, and at all times herein mentioned, RICARDO HEMENES, was lawfully within the premises located at the intersection of 47th Street & 31st Avenue and 94th Street and 23rd Avenue County of Queens, State of New York.

7. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not have reasonable suspicion that RICARDO HEMENES had engaged in and was engaging in criminal activity.

8. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not have reasonable suspicion that RICARDO HEMENES had engaged in and was engaging in criminal activity.

9. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not have probable cause to arrest RICARDO HEMENES.

10. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not have probable cause to arrest RICARDO HEMENES.

11. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not possess a warrant to search or arrest RICARDO HEMENES.

12. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT did not possess a warrant to search or arrest RICARDO HEMENES.

13. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT approached RICARDO HEMENES.

14. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT approached RICARDO HEMENES.

15. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT verbally abused RICARDO HEMENES.

16. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT verbally abused RICARDO HEMENES.

17. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT grabbed and physically restrained RICARDO HEMENES.

18. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT grabbed and physically restrained RICARDO HEMENES.

19. That on or about October 13, 2022, and at all times herein mentioned, DOUGLAS ROSSI, P.O., who was an agent, servant, or employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT arrested RICARDO HEMENES and placed him into handcuffs.

20. That on or about October 13, 2022, and at all times herein mentioned, JOHN DOES, were agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT arrested RICARDO HEMENES and placed him into handcuffs.

21. That on or about October 13, 2022, DOUGLAS ROSSI, P.O., arrested RICARDO HEMENES without probable cause and DOUGLAS ROSSI, P.O. did not have reasonable suspicion to approach Plaintiff RICARDO HEMENES.

22. That on or about October 13, 2022, JOHN DOES, arrested RICARDO HEMENES without probable cause and JOHN DOES did not have reasonable suspicion to approach Plaintiff RICARDO HEMENES.

23. That at all times mentioned herein, DOUGLAS ROSSI, P.O., the agent, servant, and employee of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were acting within the scope of their agency and employment with Defendant THE CITY OF NEW YORK.

23. That at all times mentioned herein, JOHN DOES, the agents, servants, and employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT were acting within the scope of their agency and employment with Defendant THE CITY OF NEW YORK and THE NEW YORK CITY POLICY DEPARTMENT.

24. Defendants, at all times mentioned herein, acted under the color of law.

25. This action falls within one or more of the exceptions set forth in Section 1602 of the Civil Practice Law and Rules.

26. Due to Defendants' negligence, Plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

28. Pursuant to NYC Administrative Code §8-801 to 807 none of the Defendants are covered under the doctrine of qualified immunity or substantially equivalent immunities, and pursuant to said code Plaintiff hereby requests reasonable attorney's fees and court costs.

29. That the aforesaid conduct on the part of Defendants constituted a violation of Plaintiff's civil rights under 42 USC § 1983 in that Plaintiff was deprived of his rights, privileges, and immunities secured to him by the Constitution and laws of the United States and the New York State Constitution by one who under color of a statute or regulation of a state, caused Plaintiff to be so deprived.

28. That the aforesaid use of excessive force on Plaintiff by Defendants, and the subsequent false arrest and imprisonment of Plaintiff by Defendants, deprived Plaintiff of the constitutional right to bodily security and liberty under the Fourteenth Amendment to the United States Constitution and was an unreasonable physical search seizure of Plaintiff under the Fourth Amendment to the United States Constitution.

28. That as a result of the aforesaid occurrence, Plaintiff was caused to, and did sustain, severe, serious and protracted injuries to his person, mind, and body.

29. Due to Defendants' conduct, Plaintiff is entitled to damages in a sum which exceeds the jurisdictional limit of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

30. Plaintiff incorporates by reference the allegations contained in the preceding paragraphs as though fully set forth herein.

31. Plaintiff, at the time of the aforementioned unlawful search and seize was in lawful possession of a motorbike.

32. Defendants, their agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT took possession of said motorbike without permission of Plaintiff.

32. Defendants, their agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT refused to return said motorbike upon the request of Plaintiff.

34. Defendants, their agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT negligently, recklessly, carelessly, and wantonly destroyed the aforementioned motorbike and substantially or completely reduced the value of said bike.

35. As a result of the conduct of Defendants, their agents, servants, or employees of both THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, Plaintiff has been deprived of his lawful property.

36. Pursuant to NYC Administrative Code §8-801 to 807 none of the Defendants are covered under the doctrine of qualified immunity or substantially equivalent immunities, and pursuant to said code Plaintiff hereby requests reasonable attorney's fees and court costs.

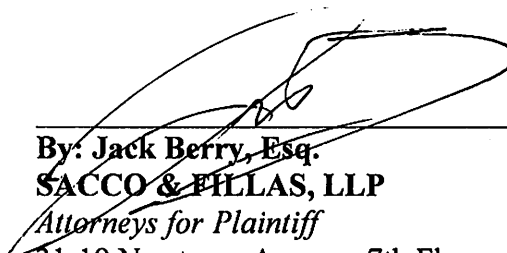
WHEREFORE, Plaintiff demands:

A. Judgment awarding damages on the first cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

B. Judgment awarding damages on the second cause of action, in an amount exceeding the monetary jurisdictional limits of all lower courts which would otherwise have jurisdiction;

C. Interest, the costs and disbursements of this action, together with such other and further relief as to this Court seems just and proper.

Dated: Astoria, New York
October 3, 2024



By: Jack Berry, Esq.
SACCO & FILLAS, LLP
Attorneys for Plaintiff

31-19 Newtown Avenue, 7th Floor
Astoria, New York 11102
(718) 746-3440
Our File No.: 31896-24

TO:

THE CITY OF NEW YORK
100 Church Street, 5th Floor
New York, New York 10007

DOUGLAS ROSSI, P.O.
34-16 Astoria Boulevard South
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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

RICARDO HEMENES,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, DOUGLAS ROSSI, P.O., and "JOHN DOES" 1-
5, fictitious names whose identities are not yet known and intended
to be the other currently unnamed police officers,

Defendants.

Index No.:

**ATTORNEY'S
VERIFICATION**

Jack Berry, Esq., an attorney duly admitted to practice law in the State of New York, makes
the following affirmation under the penalty of perjury:

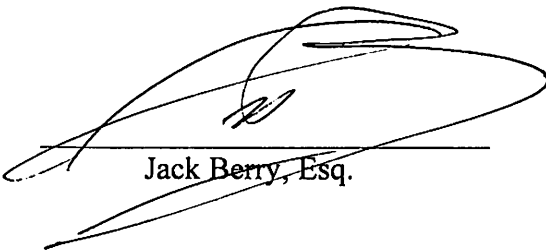
I am of the firm of **SACCO & FILLAS, LLP**, the attorneys of record for Plaintiff.

I have read the foregoing Complaint and know the contents thereof; the same is true to my own
knowledge except as to the matters therein stated to be alleged on information and belief and that as
to those matters, I believe them to be true.

This verification is made by affirmant and not by Plaintiff because he is not in the County of
Queens, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are
correspondence had with the said Plaintiff, information contained in the said Plaintiff's file, which is
in affirmant's possession, and other pertinent data relating thereto.

Dated: Astoria, New York
October 3, 2024



Jack Berry, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS
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RICARDO HEMENES,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, DOUGLAS ROSSI, P.O., and "JOHN DOES" 1-5, fictitious names whose identities are not yet known and intended to be the other currently unnamed police officers,

Defendants.

SUMMONS and VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Dated: Astoria, New York
October 3, 2024

Signature: _____

Jack Berry, Esq.

SACCO & FILLAS, LLP

Attorneys for Plaintiff

RICARDO HEMENES

31-19 Newtown Avenue

Astoria, NY 11102

(718) 746-3440

Our File # 31203-23